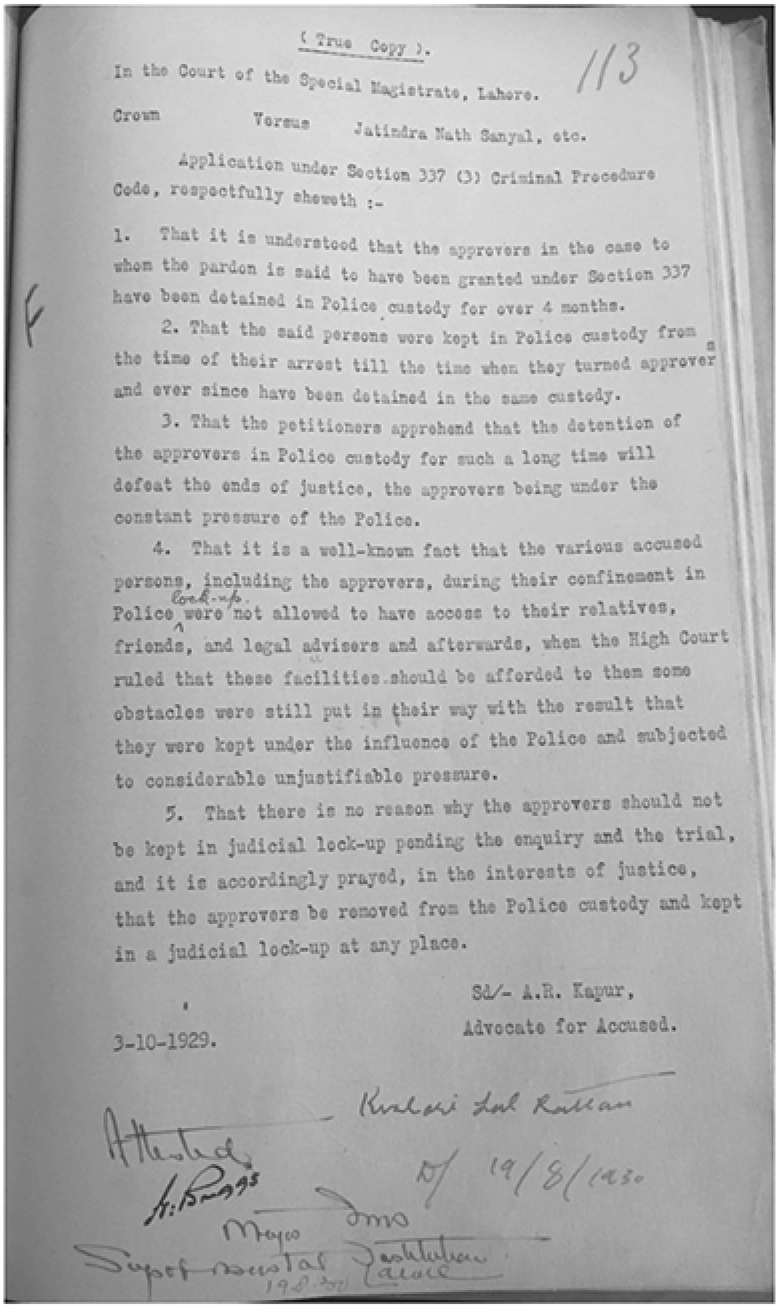

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In the Court of the Special Magistrate, Lahore.

Crown Versus Jatindra Nath Sanyal, etc.

Application under Section 337 (3) Criminal Procedure Code, respectfully sheweth :-

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1. That it is understood that the approvers in the case to whom the pardon is said to have been granted under Section 337 have been detained in Police custody for over 4 months.

2. That the said persons were kept in Police custody from the time of their arrest till the time when they turned approvers and ever since have been detained in the same custody.

3. That the petitioners apprehend that the detention of the approvers in Police custody for such a long time will defeat the ends of justice, the approvers being under the constant pressure of the Police.

4. That it is a well-known fact that the various accused persons, including the approvers, during their confinement in Police lock-ups were not allowed to have access to their relatives, friends, and legal advisers and afterwards, when the High Court ruled that these facilities should be afforded to them some obstacles were still put in their way with the result that they were kept under the influence of the Police and subjected to considerable unjustifiable pressure.

5. That there is no reason why the approvers should not be kept in judicial lock-up pending the enquiry and the trial, and it is accordingly prayed, in the interests of justice, that the approvers be removed from the Police custody and kept in a judicial lock-up at any place.

Sd/- A.R. Kapur,
Advocate for Accused.

3-10-1929.

Kishori Lal Rattan

Attested
H. Briggs
D/ 19/8/1930
Supdt. Borstal Institution
Lahore
19.8.30

(2) Once it became clear that Bhagat Singh would be tried not only for the Delhi Assembly Bomb Blast of 8 April 1929 but also for the earlier assassination of Special Constable J.P. Saunders on 17 December 1928, ever the skilled tactician, he petitioned the court on 4 November 1929. The FIR did not mention his name and the identification parade failed to